

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

July 28, 2008

The Governing Body of the City of Cheyenne met in regular session on this date at 6:00 p.m. in Council Chambers. Present were: MAYOR-Jack R. Spiker; COUNCIL MEMBERS-Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins (arriving at 6:04 p.m.), Mr. Laybourn, Mr. Pierson, Dr. Rinne, Mr. Segrave and Mr. Valdez.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Erik Rasmussen, Deputy City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests, in which event the item will be removed from the Consent Agenda and considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, Mayor Spiker announced agenda items #15, 16, 23(a)(b), 24(a)(b), and 26(a)(b) would be removed from the Consent Agenda. Comments were made pertaining to removal of Consent Agenda items. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Pierson. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn and Mr. Segrave voting "no".

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON JULY 14, 2008. Motion (per consent agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON JULY 21, 2008. Motion (per consent agenda) carried.

Mr. Segrave moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Upon inquiry, City Treasurer Barb Dorr reviewed information available on a voucher payable to Appraisals, Inc. (\$3,150.00), property appraisal for 4500 Dell Range Blvd. for Parks Division (appraised value approximately \$1.1 million). Mr. Collins (upon arrival) declared a conflict of interest (business interest) due to a voucher payable to the Bicycle Station. Upon further inquiry, Ms. Dorr reviewed information available for vouchers payable to: Frederika Barela (\$36.73), Youth Alternatives employee, reimbursement for ink cartridges; Gade Concrete (\$1,100.00), excavate, form and pour sidewalk to restroom at Pointe Park, and Soothing Sensations (\$105.00), refund of business license application fees. Main motion carried. Voting "yes" – all members of the governing body with the exception of Ms. Case and Mr. Laybourn voting "no", and Mr. Collins who did not vote.

"AN ORDINANCE AMENDING SECTION 2.04.160(D)(6), READINGS-COMMITTEE REPORTS-AMENDMENTS, OF CHAPTER 2.04, MAYOR AND CITY COUNCIL, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING." Reporting for Finance Committee, Mr. Segrave moved to approve on second reading, seconded by Mr. Brown. Upon inquiry as to the purpose of the ordinance, Mayor Spiker advised the

state legislature at its last session increased the amount required for advertising of contract bids or response from \$20,000.00 to \$35,000.00 and the ordinance is in conjunction with the state law change. Upon inquiry, City Treasurer Barb Dorr stated the change factors in inflation and increased costs for public improvement projects; provided information on oversight of those projects involving costs up to the \$35,000.00 threshold, including governing body approval of vouchers, and indicated the last ordinance involving this topic (\$20,000.00 threshold) was approved in 1995. Discussion followed on purchasing requirements, procedures involving calls for bids and/or requests for proposals/quotes, governing body involvement and oversight in purchasing process, City Council departmental budget approval authority, and City Attorney staff written opinion indicating the ordinance sponsor did not have a conflict of interest in sponsoring the ordinance. Upon inquiry regarding whether other cities have implemented similar ordinance changes, Mayor Spiker advised it was unknown if other cities/towns had or were enacting similar changes, and stated the Wyoming Association of Municipalities (WAM), whose members consist of all 99 communities within the state, supported and lobbied for the change during the legislative session. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn and Dr. Rinne voting “no”.

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS A TRACT OF LAND SITUATED IN A PORTION OF THE NW¼ OF SECTION 8, AND A PORTION OF WALTERSCHEID BOULEVARD SITUATED IN A PORTION OF THE NE¼ OF SECTION 7 AND A PORTION OF THE NW¼ OF SECTION 8, T.13N., R.66W. OF THE 6TH P.M. AND A PORTION OF WEST JEFFERSON ROAD LYING BETWEEN THE WESTERLY RIGHT-OF-WAY LINE OF THE SOUTH GREELEY HIGHWAY AND THE WEST LINE OF TRACT 16 ALLISON TRACTS, LARAMIE COUNTY, WY (LOCATED S. OF AND ADJACENT TO FOX FARM RD. AND E. OF AND ADJACENT TO WALTERSCHEID BLVD.).” Reporting for Public Services Committee, Ms. Broyles moved to approve on second reading, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE AMENDING TITLE 5, BUSINESS LICENSES AND REGULATIONS, CHAPTER 5.12, ALCOHOLIC BEVERAGES, SECTION 5.12.090 (B), MINORS-DISPENSING ROOM RESTRICTIONS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING, CONCERNING MINORS EMPLOYED IN A RESTAURANT AND FULL SERVICE RESTAURANT ENVIRONMENT” -- referred to Public Services Committee (sponsor - Mr. Collins).

“A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS THE W. 60' OF THE E. 120' OF THE S. 120' OF TRACT 336, SUNNYSIDE ADDITION, SEVENTH FILING, LARAMIE COUNTY, WY (AKA 3616 AND 3618 RAWLINS STREET).” Ms. Broyles moved to adopt, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body. (#5052)

“A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS PUBLIC ROAD AND ALLEY RIGHT-OF-WAY BEING ANNEXED SITUATED IN THE NW ¼ OF SECTION 27, T.14N, R.66W., 6TH P.M., LARAMIE COUNTY, WY (RIGHT-OF-WAY

LOCATED N. OF PERSHING BLVD., S. OF DELL RANGE BLVD., E. OF GROVE DR., AND W. OF COLLEGE DR.).” Ms. Broyles moved to adopt, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body. (#5053)

“A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS THE NORTHERLY PORTION OF LOT 1, BLOCK 1, INCLUSIVE OF THE 16’ UTILITY EASEMENT, ROGERS SUBDIVISION, AND LOTS 3 THROUGH 5, AND THE NORTHERLY HALF OF ADJACENT VACATED ALLEY, BLOCK 2, COULSON ADDITION, LARAMIE COUNTY, WY (LOCATED S. OF AND ADJACENT TO MESSENGER CT., W. OF MCCANN AVE.).” Ms. Broyles moved to adopt, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body. (#5054)

“A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS LOT 16, BLOCK 1, DOWNEY ADDITION, LARAMIE COUNTY, WY (LOCATED NW. CORNER OF RIDGE RD. AND LAND CT.).” Ms. Broyles moved to adopt, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body. (#5055)

“A RESOLUTION TO SUPPORT AND ADOPT THE RECOMMENDATIONS OF THE CHEYENNE TRANSPORTATION SAFETY MANAGEMENT PLAN.” Ms. Broyles moved to adopt, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body. (#5056)

“A RESOLUTION ACKNOWLEDGING RECEIPT OF AND SUPPORTING THE RECOMMENDATIONS OF THE EAST DELL RANGE/US 30 CORRIDOR STUDY, WHICH INCLUDES THE CHRISTENSEN RAILROAD OVERPASS.” Ms. Broyles moved to adopt, seconded by Mr. Pierson. Comment was made in support of the project. Motion carried. Voting “yes” – all members of the governing body. (#5057)

[CA] “A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE STATE LOAN AND INVESTMENT BOARD FOR A GRANT FROM THE TRANSPORTATION ENTERPRISE FUND ON BEHALF OF THE GOVERNING BODY OF THE CITY OF CHEYENNE/CHEYENNE TRANSIT PROGRAM, FOR THE PURPOSE OF PURCHASING TWO 22 PASSENGER REPLACEMENT BUSES” -- referred to Finance Committee (sponsor - Mr. Pierson).

[CA] RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPERTY DESCRIBED AS THE WEST ½ OF TRACT 10, AIRPORT VALLEY TRACTS, LARAMIE COUNTY, WY (AKA 5905 CROW ROAD)” -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION APPROVING THE SUBMITTAL OF AN APPLICATION TO THE WYOMING WATER DEVELOPMENT COMMISSION FOR FUNDING FOR THE BELVOIR PALEOZOIC LEVEL II GROUNDWATER EXPLORATION PROJECT AND AUTHORIZING THE BOARD DIRECTOR TO SIGN THE APPLICATION AND TO EXECUTE ALL RELATED

DOCUMENTS” -- referred to Finance Committee (sponsor - Mr. Segrave).

[CA] “A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE WYOMING STATE LOAN AND INVESTMENT BOARD FOR A LOAN FROM THE STATE REVOLVING FUND FOR THE PURPOSE OF FUNDING THE REPLACEMENT OR CLEANING AND LINING OF THE 30 INCH WATER TRANSMISSION MAIN (ROUNDTOP TO I-25) AND AUTHORIZING THE MAYOR, CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO SIGN ALL LOAN DOCUMENTS” -- referred to Finance Committee (sponsor - Mr. Segrave).

[CA] “A RESOLUTION APPROVING THE SUBMISSION OF AN APPLICATION TO THE WYOMING WATER DEVELOPMENT COMMISSION FOR A GROUNDWATER EXPLORATION GRANT FOR A CHEYENNE MUNICIPAL WELLFIELD - MANAGED AQUIFER RECHARGE, STORAGE AND RECOVERY PROJECT AND AUTHORIZING THE BOARD DIRECTOR TO SIGN THE APPLICATION” -- referred to Finance Committee (sponsor - Mr. Segrave).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND CITY CLERK TO EXECUTE A PURCHASE AGREEMENT TO ACQUIRE REAL PROPERTY AT 4500 DELL RANGE BLVD. (SLIB & GENERAL FUND RESERVES)” -- referred to Finance Committee (sponsors - Mr. Collins and Mr. Segrave).

LEASES/CONTRACTS/LEGAL:

Contract between the City of Cheyenne, Police Department, and Laramie County School District No. 1, for School Resource Officers for the 2008-2009 school. Mr. Segrave moved to approve in an amount not to exceed \$329,606.00, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body. (#5285)

Agreement between the City of Cheyenne, Frontier Mall Associates LP, and CBL Peripheral Properties LP, for Frontier Mall Drainage, addressing property detention requirements through participation in construction of a regional detention basin. Mr. Segrave moved to approve, seconded by Mr. Brown. Upon inquiry, City Engineer Ken Lewis explained the agreement will allow Frontier Mall Properties to participate in the regional detention basin that will be created by the Dry Creek FEMA project; indicated the mall properties financial participation will be approximately \$116,000.00, and advised any opportunity for future properties to participate in the detention basin would be reviewed by staff and FEMA and would include individual review of the property relative to drainage calculations, impact, and related issues. Motion carried. Voting “yes” – all members of the governing body. (#5286)

[CA] Maintenance Agreement between the City of Cheyenne and the Wyoming Department of Transportation for the installation and maintenance of enhancements for the Randall Avenue Interchange Project (2003-2006 1% Sales Tax) -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Contract Modification No. 1 to Contract No. 5108 between the City of Cheyenne, Parks & Recreation Dept., and Scotch Boy Landscaping, for irrigation and sod in Western Hills Park. Mr. Segrave moved to approve in an amount not to exceed \$7,400.00, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body. (#5108)

Contract Modification No. 2 to Contract No. 4968 between the City of Cheyenne, Engineering Dept., and the Wyoming Dept. of Transportation, to add a supplemental project review meeting and a public scoping meeting for reconstruction of W. Pershing Blvd. from I-25 to Pioneer Ave. (2003-2006 1% Sales Tax). Mr. Segrave moved to approve in an amount not to exceed \$10,440.00, seconded by Mr. Valdez. Upon inquiry, City Engineer Ken Lewis advised the Wyoming Dept. of Transportation (WYDOT) has already held these meetings but additional meetings will be held prior to final approval of the project, and that this is a WYDOT assisted project following WYDOT’s schedule. He explained the amount of the contract modification includes individual staff consultants’ hours to compile data, prepare documents and visual aids, attend meetings, and any post-meeting and peripheral activities. Discussion included timeliness of submission of the modification relative to WYDOT’s schedule and the meetings already being held; City and WYDOT contract management issues; project information and meeting notification to affected neighborhood residents; federal funding involved in the project; project including work at the Randall Ave. interchange of I-25, and support for keeping affected residents informed. Mr. Lewis provided information concerning WYDOT’s public meetings and residents’ notification efforts, and stated there are two projects involved, WYDOT’s Randall Interchange Reconstruction project, and the City’s Pershing West Reconstruction project that WYDOT is doing on the City’s behalf. He confirmed the State is the lead agency for the contracts. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. (#4968)

[CA] Amendment No. 3 to Contract No. 3516 between the City of Cheyenne and the Wyoming Association of Risk Management Property Insurance Joint Powers Board for an Amended and Restated Joint Powers Agreement -- referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #R-1-09 for furnishing two new twin screw cab & chassis from Cheyenne Freightliner, for the Sanitation Dept. Mr. Segrave moved to accept the bid submitted by Cheyenne Freightliner in an amount not to exceed \$203,204.00, seconded by Mr. Valdez. Upon inquiry, Vicki Nemecek, Public Works Dept., confirmed her attendance at a recent Council work session involving discussion on the anticipated life span of the current landfill and related future landfill options. Comment followed regarding whether documentation was available on the potential life span and capacity of the existing landfill and how transportation of waste to Colorado will increase the life span time frame. Mr. Segrave raised a point of order indicating that comments being made were not relevant to the motion on the floor as the decision to transfer solid waste to Ault, CO had already been decided at a previous meeting. Mayor Spiker ruled in favor of the point of order, indicating comments were “off subject”, and requested discussion remain relevant to the motion to act on the bid to purchase two vehicles for use in transporting waste to Colorado. During comments and upon inquiry, Ms. Nemecek provided information on sanitation’s equipment replacement plan

and discussed factors involving fuel costs and the number of trips that may be made to the Ault site based on community waste volume and recycling efforts. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Case and Mr. Laybourn voting “no”.

Consideration of Bid #R-2-09 for furnishing four solid waste transfer trailers from Ameri-Tech Equipment, for the Sanitation Dept. Mr. Segrave moved to accept the bid submitted by Ameri-Tech Equipment, Casper, in an amount not to exceed \$287,600.00, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Case and Mr. Laybourn voting “no”.

[CA] Consideration of Bid #R-4-09 for furnishing 646 1½ cubic yard refuse containers from Ameri-Tech Equipment Co., Casper WY, for the Sanitation Dept. -- referred to Finance Committee.

APPOINTMENTS:

Appointment of Richard Keslar to the Tourism Promotion Joint Powers Board, and Nancy Abraham to the Historic Preservation Board. Mr. Collins moved to approve, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

Reappointment of Connie Sloan-Cathcart to the Public Transit Advisory Board. Mr. Segrave moved to approve, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body.

ANNOUNCEMENTS/REPORTS/MOTIONS:

[CA] Annual leaseholder improvement report submitted by the Airport Golf Club, Inc. -- referred to Finance Committee.

Announcement was made of the appointment of Ami Skeens to the Public Transit Advisory Board, and Peter Illoway to the Cheyenne Regional Airport Board, to be confirmed August 11, 2008.

Announcement was made of a Public Hearing to be held August 11, 2008 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. § 15-1-402 exists for the property described as being situated in a portion of Section 1, 12, and 17, T13N., R67W. of the 6th P.M., Laramie County, WY (located S. of I-80 and predominantly E. of Southwest Dr.).

OTHER CITY BUSINESS:

Resident John Fafoutakis encouraged placement of a plastics recycling drop-off bin in the south Cheyenne area, and expressed concerns with individuals on ATVs he has observed harassing an antelope herd in a construction area near Walterscheid.

Mayor Spiker recognized former City Councilman Tom Scherr, who was present at the meeting.

Upon inquiry regarding proposed acquisition of property located at 4500 Dell Range Blvd.(agenda item #22), Mayor Spiker and Rick Parish, Parks and Recreation Director, verified an offer to purchase has been made and is contingent upon governing body approval; provided information on due diligence that has been conducted (i.e. building inspections, etc.); funding that has been approved to put toward a new facility, and stated the site will provide for relocation of the Parks Maintenance Shop due to construction of the new Children's Garden near the Botanic Gardens. Comment was made regarding the property transaction process and communication of information to City Council members.

Concern was expressed regarding street, curb and gutter debris along the Cheyenne Frontier Days parade route and the downtown area during the recent celebration in conjunction with the Clean and Sweep program. It was noted that the increase in volume of persons in Cheyenne during CFD, and the number of events in the downtown area, make it a challenge to keep up with clean-up efforts. All City employees involved with the CFD event were commended for their efforts during this year's celebration.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:13 p.m.

Submitted by,

Carol A. Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
August 5, 2008